

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE IMPOSING A TEMPORARY TWELVE (12) MONTH MORATORIUM ON THE ESTABLISHMENT, CONSTRUCTION, OR CONVERSION OF ANY BUILDINGS OR STRUCTURES FOR USE AS A DATA CENTER, INCLUDING ANY CHANGE OF USE TO A DATA CENTER."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. The Governing Body finds and declares that:

- A. The City is responsible for adopting ordinances, resolutions and regulations necessary for the health, safety, and welfare of City residents;
- B. Current zoning and development standards may not adequately address the unique characteristics, demands, and potential cumulative effects of data centers, which are rapidly proliferating within and near the City;
- C. There is considerable public interest and concern among City residents regarding the potential impacts of data centers on their health, safety, and general welfare;
- D. The Governing Body finds that a temporary a twelve (12) month moratorium is necessary on the acceptance and processing of applications and permits related to the establishment or expansion of any data center uses, including, but not limited to, applications for building permits, site plan and architectural reviews, variances, conditional use permits, grading permits, and occupancy permits; and
- E. A moratorium will allow City staff the time necessary to study the impacts of data centers and develop recommendations for the Governing Body regarding potential revisions to the applicable ordinances, codes and regulations pertaining to data centers.

Section 2. The Governing Body hereby imposes a twelve (12) month moratorium on the processing, consideration, approval, or issuance of any licenses, permits, approvals, permitted uses, special uses, accessory uses, site plans, conditional uses, rezonings, or variances that would enable or authorize the establishment, construction, or conversion of any building or structure to data center use within the City.

Section 3. This moratorium shall not apply to data centers currently under construction, or to the repair or replacement of existing data centers, but shall apply to data centers where on-site construction has not commenced. For purposes of this Section, "on-site construction" means the commencement of substantial physical site work, such as grading, excavation, or foundation installation, and does not include preconstruction activities such as design, engineering, permitting, financing, equipment procurement, or contractual commitments. Any applications pertaining to data centers that have not begun on-site construction shall be held in abeyance during the pendency

of this moratorium until the moratorium has expired, unless the applicant elects to withdraw their application. Any required timelines related to an application shall be tolled for the duration of the moratorium. City staff shall provide notice to any applicable applicants of the moratorium and tolling period. Any fees paid to the City shall be refunded to any applicant that elects to withdraw an application related to the establishment, construction, or conversion of a building or structure to a data center that is delayed as a result of this moratorium.

Section 4. City staff shall study the impact of data centers on the environment, electricity rates, the power grid, water usage, and any other factors related to the health, safety, and welfare of City residents. Staff shall report the results of the study to the Governing Body not later than April 1, 2027, and shall include recommendations to the Governing Body for any changes to applicable codes, rules, or regulations.

Section 5. For purposes of this Ordinance, “data center” means as defined by § 1.4.4.(f) of the Cheyenne Unified Development Code.

Section 6. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. This ordinance shall be in full force and effect upon approval and publication for twelve (12) months from the date of publication unless further extended by the Governing Body.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
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